

theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: "If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment." (*Id.*, at 505.) Following typical practice, however, the fee award will not be considered at this time, but only as part of final approval.

Similarly, litigation costs and the requested representative payment of \$10,000 for the plaintiff will be reviewed at time of final approval. Criteria for evaluation of representative payment requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-07.

**D. Discussion and Conclusion**

The Court finds that the settlement is sufficiently fair, reasonable, and adequate to justify preliminary approval.

Counsel will be directed to prepare an order reflecting this tentative ruling, the other findings in the previously submitted proposed order, and to obtain a hearing date for the motion for final approval from the Department clerk. Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs' counsel are to submit a compliance statement one week before the compliance hearing date. Five percent of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

**8. 9:00 AM CASE NUMBER: C24-01054**  
**CASE NAME: SLIVER'S, LLC VS. CL LA FIESTA SQUARE CA LP**  
**\*HEARING ON MOTION IN RE: SEAL DEFENDANTS' UN-REDACTED MOTION FOR SUMMARY JUDGMENT (ADVANCED FROM 8/19/26)**  
**FILED BY: SLIVER'S, LLC**  
**\*TENTATIVE RULING:\***

These are two motion to file confidential portions of a summary judgment motion under seal. The motions are unopposed and uncontroversial. For unexplained reasons, however, the parties have stipulated to request that the motion hearings be continued a week. They are therefore **continued** to April 22.

**9. 9:00 AM CASE NUMBER: C24-01054**  
**CASE NAME: SLIVER'S, LLC VS. CL LA FIESTA SQUARE CA LP**  
**\*HEARING ON MOTION IN RE: SEAL UNREDACTED MOTION FOR SUMMARY ADJUDICATION**  
**FILED BY: SLIVER'S, LLC**  
**\*TENTATIVE RULING:\***

See Line 8 above.